1455 Grit Trail Drive
Stockton, CA 95204

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,
Plaintiff,

v.

HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, CASOMB-certified treatment provider, as state actor;
JEFF MACOMBER, Secretary of the California Department of Corrections and Rehabilitation, in official capacity,

Defendants.

FILED
FEB 20 2026
CLERK
EASTERN
BY

Case No. 2:26-cv-00195-TLN-AC

FIRST AMENDED COMPLAINT FOR VIOLATION OF CIVIL RIGHTS UNDER 42 U.S.C. § 1983
(Fourteenth Amendment – Due Process)

DEMAND FOR JURY TRIAL

INTRODUCTION

1. Plaintiff BRENDAN NGEHSI NEWANFORBI brings this First Amended Complaint under 42 U.S.C. § 1983 against two Defendants: **HOPE Psychotherapy, Inc.**, a for-profit private corporation that exercises state-delegated authority over liberty-affecting treatment determinations, and **Secretary Jeff Macomber**, sued in his official capacity only for prospective injunctive and declaratory relief. This action challenges a system in which a private treatment provider with a direct financial incentive to retain parolees has been delegated unfettered authority over "completion" determinations that control parole discharge—without published criteria, without notice, without appeal, and without any meaningful state oversight.

2. This case does not ask whether Defendants made the "right" parole decision. It asks whether they followed any constitutional procedure at all. The answer, documented in their own records, is no. California's structured parole discharge framework creates mandatory procedures: scoring criteria, aggregation bands, good-cause findings, Containment Team Meeting documentation, and written notice. Defendants ignored every single one. They fabricated an eligibility rule that does not exist in any statute or regulation. They relied on internally contradictory factual premises. And they delegated the central liberty determination—treatment

"completion"—to a private entity that California courts have already found operates a system "vitiating the Legislature's directive."

3. The structural defects here are not discretionary. They are procedural nullities documented on the face of Plaintiff's CDCR Form 1502-DR Discharge Review Report, attached hereto as **Exhibit A** and incorporated by reference. The Discharge Review Report is facially defective under California's own regulations and the United States Constitution.

4. Plaintiff does not seek a judicial order terminating his parole. He seeks an order compelling the state to provide the constitutionally adequate process to which he is entitled—which may or may not result in his earlier discharge. His claim is therefore cognizable under § 1983. Wilkinson v. Dotson, 544 U.S. 74, 82 (2005). Plaintiff expressly disavows any relief that would necessarily imply the invalidity of the duration of his parole custody. Heck v. Humphrey, 512 U.S. 477 (1994).

JURISDICTION AND VENUE

5. This Court has subject matter jurisdiction under 28 U.S.C. § 1331 (federal question) and 28 U.S.C. § 1343(a)(3) (civil rights). This action arises under 42 U.S.C. § 1983 and the Fourteenth Amendment to the United States Constitution.

6. Venue is proper in the Eastern District of California under 28 U.S.C. § 1391(b) because a substantial part of the events giving rise to this claim occurred in San Joaquin County, California, within this judicial district. Plaintiff is supervised by the Stockton 2 GPS Parole Unit, and the challenged Discharge Review Report was prepared and finalized by personnel assigned to that unit. HOPE Psychotherapy, Inc. operates its Stockton treatment location in this district. All Defendants are subject to personal jurisdiction.

PARTIES

Plaintiff

7. Plaintiff BRENDAN NGEHSI NEWANFORBI is a natural person, a parolee under the jurisdiction of the California Department of Corrections and Rehabilitation ("CDCR"), Division of Adult Parole Operations ("DAPO"), supervised by the Stockton 2 GPS Parole Unit in San Joaquin County, California. Plaintiff was released on parole on December 2, 2020, and has been enrolled in mandatory sex offender treatment through the HOPE Program continuously since that date—over five years and two months. Plaintiff proceeds pro se.

Defendant HOPE Psychotherapy, Inc.

8. **Defendant HOPE PSYCHOTHERAPY, INC.**, doing business as the HOPE Program (NPI 1992154603), is a for-profit California Licensed Clinical Social Worker Professional

Corporation, certified by the California Sex Offender Management Board ("CASOMB") to provide mandatory sex offender treatment under Penal Code § 3008(d). HOPE is headquartered at 1245 B Street, Hayward, California 94541, with an estimated annual revenue of $14.2 million and approximately 176 employees across multiple Northern California locations, including Modesto and Capitola. HOPE operates a treatment location in Stockton, San Joaquin County, within this judicial district. Shannon Smith, LCSW, is HOPE's owner and authorized official.

9. HOPE is a state actor for purposes of 42 U.S.C. § 1983. CDCR has delegated to HOPE the traditionally exclusive public function of determining whether a parolee has "completed" mandatory sex offender treatment—a determination that directly controls parole discharge eligibility under Penal Code § 3008(d)(2). HOPE's treatment characterizations are incorporated wholesale into CDCR's Discharge Review Reports and adopted without independent review. West v. Atkins, 487 U.S. 42, 54 (1988); Lugar v. Edmondson Oil Co., 457 U.S. 922 (1982).

10. HOPE is liable because the constitutional violations alleged herein were caused by HOPE's official policies, customs, and practices, including: (a) a blanket retention policy requiring all participants to maintain a "continuous connection to treatment" for the entire parole term, regardless of individual progress—a policy HOPE's own Executive Director of Clinical Training admitted under oath in *Dwyer*; (b) an arbitrary phase-looping structure (Core twice, Maintenance twice, titration) that appears in no statute or regulation and makes completion structurally impossible; and (c) the absence of any published completion criteria, appeal process, or independent review mechanism. These are not mere clinical preferences; they are deliberate business practices that maximize billable "maintenance" phases under HOPE's fee-for-service contracts. These policies were the "moving force" behind the deprivation of Plaintiff's constitutional rights. See *Monell v. Dep't of Soc. Servs.*, 436 U.S. 658, 694 (1978).

Defendant Jeffrey Macomber

11. **Defendant JEFF MACOMBER** is the Secretary of the California Department of Corrections and Rehabilitation, the chief executive officer with ultimate authority over CDCR's policies and practices, including the Sex Offender Management Program ("SOMP"), parole discharge procedures, and the state's contracting relationships with CASOMB-certified treatment providers. Secretary Macomber is sued in his official capacity only for prospective injunctive and declaratory relief pursuant to Ex parte Young, 209 U.S. 123 (1908).

FACTUAL ALLEGATIONS

California's Parole Discharge Framework

12. California Penal Code § 3001(a)(2) provides that sex offenders on parole become eligible for discharge review after one year of continuous parole. The statute mandates that within 30 days of the one-year mark, the parolee "shall be discharged from parole" unless CDCR

recommends retention and the Board of Parole Hearings finds "good cause" to retain. The statute contains no exception based on parole term length.

13. Penal Code § 3008(d)(2) requires that sex offenders on parole "shall successfully complete a sex offender management program." The statute provides that the program "shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court." This statute gives parolees the statutory opportunity to "complete" treatment—it does not mandate participation for the entire parole term.

14. Title 15, California Code of Regulations, Section 3574(f)(1) expressly provides that "[t]reatment completion and parole discharge are legally separate decisions." This regulatory mandate prohibits CDCR from conditioning parole discharge on treatment completion and vice versa.

15. CDCR Form 1502-DR implements a structured Discharge Review framework with defined scoring criteria across six objectives, numerical aggregation bands that correspond to presumptive outcomes, mandatory Containment Team Meeting ("CTM") documentation on CDCR Form 3043 with good-cause findings for retention, and written notice to the parolee. When California establishes structured decision criteria with defined outcomes, it cannot arbitrarily disregard them. Hicks v. Oklahoma, 447 U.S. 343, 346 (1980); Greenholtz v. Inmates of Nebraska Penal Complex, 442 U.S. 1 (1979).

Judicial Condemnation of CDCR's Blanket Retention Policy

16. In *In re Dwyer*, No. SC-080355A (San Mateo Super. Ct. Mar. 20, 2023), a California Superior Court found that CDCR's blanket policy of requiring treatment participation for the entire parole term "vitiates the Legislature's directive" under Penal Code § 3008(d)(2). The court found that the treatment provider—HOPE Psychotherapy, Inc., the same provider at issue here—exercised discretion "in all cases to require participation … for the entire term of parole," converting a statutory ceiling into a mandatory floor. A true and correct copy of the *Dwyer* order is attached hereto as **Exhibit B**.

17. In *Alliance for Constitutional Sex Offense Laws v. Macomber*, No. 23STCP02378 (L.A. Super. Ct. Dec. 13, 2023), the court overruled Defendant Macomber's demurrer, finding that petitioners stated valid causes of action for mandate and declaratory relief—including that CDCR's blanket retention policy contradicts the statutory requirement for individualized discretion. The *Macomber* litigation resulted in regulatory amendments (NCR 25-01, effective April 2025) to Title 15 CCR § 3574. A true and correct copy of the demurrer order is attached hereto as **Exhibit C**.

18. Despite these judicial rulings and regulatory amendments, Defendants continue operating the same system. The *Dwyer* and *Macomber* decisions put all CDCR officials and HOPE

personnel on actual notice that indefinite treatment retention without individualized assessment violates state law. Defendants' post-2023 continuation of these condemned practices demonstrates deliberate indifference to Plaintiff's constitutional rights.

HOPE's Arbitrary Treatment Structure

19. HOPE's treatment structure includes mandatory phase repetitions with no regulatory basis. Participants are required to complete "Core" phase twice, "Maintenance" phase twice, and then a "titration" period before being considered for program completion—a framework that appears nowhere in Penal Code § 3008(d) or Title 15 CCR § 3574. This arbitrary phase-looping system results in participants remaining in treatment for five to seven or more years with no meaningful prospect of completion, regardless of their compliance, risk scores, or treatment progress.

20. HOPE's criteria for "phase progression," "titration," and "completion" are unpublished, internally contradictory, and unknowable to participants. HOPE has never provided Plaintiff with: (a) written criteria for program completion; (b) a written explanation of what conduct or progress is required to advance through phases; (c) an appeal process for titration decisions; or (d) any mechanism to challenge lost homework or forced phase restarts. This lack of objective, knowable standards vests HOPE officials with unbridled discretion to prolong treatment indefinitely. Kolender v. Lawson, 461 U.S. 352, 357–58 (1983).

21. HOPE's director has admitted that homework assignments are "routinely lost" within the program. Participants, including Plaintiff, are forced to restart phases due to staff turnover or job-related group changes, forfeiting progress they had previously earned. These practices introduce fundamental unreliability into treatment determinations, yet CDCR cites HOPE's "non-completion" characterization as a factual basis for denying discharge.

22. The combined effect of HOPE's blanket retention policy, arbitrary phase-looping structure, unpublished criteria, routine homework losses, and forced restarts is that Plaintiff's characterization as "non-complete" was predetermined from the day he entered the program. It bears no relationship to his individual clinical progress, compliance, or risk level.

The Financial Architecture of Indefinite Retention

23. The indefinite treatment retention system is reinforced by a payment structure that creates direct financial incentives for prolonged enrollment and no financial reward for successful completion. HOPE Psychotherapy, Inc. operates under a fee-for-service model where revenue is directly tied to the volume of "active" participants and the frequency of billable services.

24. HOPE's billing rates are documented in publicly available Alameda County contracts. Across Procurement Contract No. 18262 (Revised Exhibit B-1, Payment Terms) and Contract No. 901843/27270, HOPE charges approximately $75–$100 per group psychotherapy session (90

minutes); $130–$200 per individual psychotherapy session (60 minutes); $450–$600 per clinical polygraph examination and report; and $1,000 per psychosexual evaluation—all on a pure fee-for-service basis with no completion bonus. HOPE also holds a share of the $1.65 million AB 109 Sex Offender Management Treatment Program pooled vendor contract (Master Contract No. 901949), subsequently increased to $2.2 million through 2027. Under these payment structures, each client discharge terminates a recurring revenue stream.

25. CDCR's statewide budget for sex offender management contract services is calculated based on "Average Daily Population" ("ADP") multiplied by average bid rates, with a total fund allocation of approximately $26 million. This ADP-based funding model creates institutional incentives to maintain high caseloads: if the supervised population decreases through discharges, the funding justification decreases proportionally.

26. The financial conflict is structural and documented. HOPE is a multi-location, for-profit corporation whose business model depends on CDCR referrals and continued enrollment. Publicly available contracts demonstrate a fee-for-service payment structure under which revenue increases with each retained parolee and terminates upon discharge. Based on documented billing rates, a single parolee attending two weekly group sessions and two annual CTMs generates approximately $10,600 per year in baseline fees alone. Over a ten-year parole term, that represents approximately $106,000 in recurring revenue from one client. There is no documented "success bonus" or completion incentive. CDCR's statewide SOMP budget is calculated on Average Daily Population multiplied by per-capita rates. Every discharge therefore reduces both HOPE's billable caseload and CDCR's funding justification. Delegating the gatekeeper "completion" determination to a private vendor whose revenue depends on continued enrollment creates the structural bias the Due Process Clause prohibits. *Tumey v. Ohio*, 273 U.S. 510, 532 (1927); *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868, 878 (2009).

27. The regulatory amendments forced by the ACSOL v. Macomber litigation serve as tacit admission that the prior system lacked adequate discharge mechanisms. The fact that California had to be sued to implement a mandatory "completion review" mechanism confirms that the financial incentive structure did not naturally encourage discharge.

Plaintiff's Experience in the HOPE Program

28. Plaintiff has participated in CDCR's Sex Offender Management Program via the HOPE Program for over five years and two months since his release on December 2, 2020. During this time, Plaintiff has been subjected to the arbitrary and standardless practices described above—the same practices condemned in Dwyer and challenged in Macomber.

29. During Plaintiff's parole term, Containment Team Meetings were held approximately twice per year—approximately ten CTMs over five years. At each CTM, five individuals were present, and CDCR Form 3043—the official Containment Model record documenting risk,

treatment status, and supervision determinations—was completed by parole staff and treatment providers.

30. Despite the Form 3043s being completed at each CTM, none of these documents were provided to Plaintiff through any regular or automatic procedure. Plaintiff only obtained copies by physically going to the parole office and requesting them. Despite this lack of disclosure, the determinations recorded in those CTMs and on the Form 3043s were used to justify continued treatment, increased supervision, and the denial of his discharge.

31. As a direct result of the policies and practices described above, Plaintiff is subject to a system that provides no meaningful, ascertainable path to program completion or parole discharge prior to his controlling discharge date in 2030. The absence of such a path transforms his finite, ten-year parole term into an indefinite deprivation of liberty.

The Defective Discharge Review Report

32. On or about November 12, 2025, CDCR Parole Agent Long Moua prepared CDCR Form 1502-DR Discharge Review Report for Plaintiff. The report was subsequently reviewed and approved by Unit Supervisor Gary Noguchi (November 14, 2025) and Parole Administrator Keely Dodd (November 19, 2025). A true and correct copy of the CDCR Form 1502-DR Discharge Review Report is attached hereto as **Exhibit A** and incorporated herein by reference.

33. The Discharge Review Report contains the following procedural and factual defects that violate Plaintiff's constitutional right to due process:

Defect 1: Arbitrary Scoring Without Aggregation or Explanation

34. The Discharge Review Report assigns numerical scores to each of six objectives: Objective 1 (Residence Stability): Rated 1 (best possible score); Objective 2 (Structured Time): Rated 3; Objective 3 (Compliance): Rated 3; Objective 4 (Programming): Rated 3; Objective 5 (Pro-social Affiliations): Rated 2; Objective 6 (Sex Offender Treatment): Rated 2.

35. Despite assigning individual scores, the report never totals these scores, never identifies the applicable scoring band, and never explains how the scores connect to the ultimate recommendation. The report simply jumps to the conclusion: "Retain on Parole." Based on the assigned scores (1+3+3+3+2+2 = 14), Plaintiff's total falls within the "13–19: Increase May be Warranted" band—yet the report arbitrarily recommends retention without explanation, rendering the scoring system meaningless.

Defect 2: Reliance on Internally Contradictory and Materially False Facts

36. The Discharge Review Report contains a fatal internal contradiction regarding Plaintiff's sex offender treatment status. Objective 6 scores Plaintiff as "2—Attended and partially participated in sex offender treatment." The Agent Narrative simultaneously states that Plaintiff

"has not completed sex offender treatment." "Partial participation" and "non-completion" are mutually exclusive characterizations under Title 15 CCR § 3574.

37. More fundamentally, Plaintiff's "non-completion" status is a manufactured condition. As the *Dwyer* court found, HOPE's policy makes completion prior to parole discharge impossible for all participants. Defendants cannot lawfully cite "non-completion" as a basis for retention when their own policies ensure that completion is structurally impossible. The treatment characterization incorporated into the 1502-DR was not the product of individualized clinical judgment; it was the automatic output of HOPE's blanket retention policy.

Defect 3: Treatment of Minor Violations as Substantive Risk Indicators

38. The report lists as an aggravating factor that Plaintiff "incurred multiple parole violations during this review period." On information and belief, these "violations" consist of minor technical infractions—verbal reprimands for administrative noncompliance—not new criminal conduct or substantive parole violations. Citing such minor matters as aggravating factors for the purpose of denying parole discharge constitutes reliance on materially misleading information.

Defect 4: Fabricated Eligibility Criterion

39. The Discharge Review Report states or implies that Plaintiff is ineligible for discharge because he is serving a ten-year parole term. No such eligibility bar exists in California law. California Penal Code § 3001(a)(2) provides that sex offenders become eligible for discharge review after one year of continuous parole—with no exception based on parole term length. Neither Penal Code § 3001, nor Title 15 CCR § 3574, nor any other statute, regulation, or published CDCR policy lists parole term length as a "good cause" factor for denying discharge. The criterion applied to Plaintiff has no basis in law.

40. Defendants applied an eligibility criterion not found in any statute, regulation, or published CDCR policy. Decisions affecting liberty must be based on established criteria, not ad hoc fabrications. Hicks v. Oklahoma, 447 U.S. at 346; Carey v. Piphus, 435 U.S. 247, 266 (1978).

Defect 5: Failure to Weigh Acknowledged Mitigating Evidence

41. The report explicitly acknowledges favorable evidence: Objective 1 scores Plaintiff's residence stability at 1 (best possible); his mental health status is noted as CCCMS-compliant; and the Supervisor Narrative states that Plaintiff "should be commended for maintaining compliance with parole supervision." Despite acknowledging these mitigating factors, the report assigns them no mitigating weight in the ultimate decision, rendering the discharge review procedurally meaningless. Morrissey v. Brewer, 408 U.S. 471, 488 (1972).

Defect 6: Missing Mandatory Procedural Safeguards

42. The Discharge Review Report was prepared without attaching the mandatory CTM documentation and CDCR Form 3043 with good-cause findings required by Title 15 CCR § 3574. The report also fails to include any evidence that Plaintiff was provided constitutionally adequate notice of the adverse decision, the basis for the decision, or an opportunity to respond. Mullane v. Central Hanover Bank & Trust Co., 339 U.S. 306, 314 (1950); Morrissey, 408 U.S. at 489.

The Policy Framework Applied to Plaintiff's Review

43. At the time of Plaintiff's discharge review, CDCR applied Policy 19-03 (Amended), which imposed a categorical 6.5-year time-served requirement for parolees assigned a ten-year parole term. The Discharge Review Report cited this policy as dispositive. The existence of this fixed time bar demonstrates that the discharge framework operated through predetermined structural criteria rather than individualized assessment. HOPE's treatment characterization functioned within—and was relied upon inside—this rigid policy structure. The combination of a fixed time bar and a treatment provider's blanket non-completion determination operated as a structural barrier that functionally foreclosed discharge for parolees in Plaintiff's category, regardless of individual progress, compliance, or risk reduction.

HOPE's Causal Role in the Deprivation

44. HOPE's predetermined "non-completion" characterization was incorporated directly into the Discharge Review Report as the treatment-based justification for continued supervision. Without HOPE's mischaracterization, the discharge review would not have had the treatment-based predicate it relied upon. HOPE's conduct was a but-for cause and a substantial factor in producing Plaintiff's continued custodial restraint. CDCR's intervening exercise of discretion does not break the causal chain where HOPE knowingly supplied false input to a custodial decision.

45. HOPE's contribution to the restraint—the non-completion characterization—is the product of a blanket retention policy that violates Penal Code § 3008(d)(2) (converting a statutory ceiling into a mandatory floor), 15 CCR § 3574(f)(1) (collapsing legally separate decisions), and common-law fraud (misrepresenting a policy-driven predetermination as an individualized assessment). A private entity that knowingly supplies false or ultra vires input to a custodial decision has no privilege to cause the resulting confinement.

CLAIMS FOR RELIEF

COUNT I: VIOLATION OF PROCEDURAL DUE PROCESS

(Fourteenth Amendment)

Against Defendant HOPE Psychotherapy, Inc. for Damages

46. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

47. California's structured parole discharge framework—including Penal Code § 3001, Title 15 CCR § 3574, and the CDCR 1502-DR scoring system—creates constitutionally protected liberty interests in the procedures governing parole discharge decisions.

48. HOPE Psychotherapy, Inc., acting under color of state law as a delegated state actor, deprived Plaintiff of these liberty interests without constitutionally adequate procedures by: (a) operating a blanket retention policy that makes treatment completion structurally impossible; (b) applying unpublished, standardless criteria that vest HOPE with unbridled discretion; (c) providing a predetermined "non-completion" characterization that was incorporated into Plaintiff's Discharge Review Report without individualized clinical assessment; (d) failing to provide Plaintiff with any written completion criteria, appeal process, or mechanism to challenge forced phase restarts; and (e) operating under a direct financial conflict of interest that compromises the integrity of completion determinations.

49. HOPE's blanket retention policy, arbitrary phase-looping structure, and absence of published criteria constituted the official policies and customs of HOPE that were the "moving force" behind the deprivation of Plaintiff's rights. See *Monell*, 436 U.S. at 694. HOPE's failure to establish written completion criteria is not an omission—it is a deliberate policy choice designed to maximize billable "maintenance" phases and ensure that parolees' "non-completion" status is predetermined.

50. The *Dwyer* decision (March 2023) and the *Macomber* litigation (demurrer overruled December 2023) put HOPE on actual notice that its blanket retention practices were unlawful. HOPE's continued application of those practices to Plaintiff after these rulings demonstrates deliberate indifference to his constitutional rights.

51. As a direct and proximate result of HOPE's violations, Plaintiff has suffered and continues to suffer: continued parole supervision and GPS monitoring; restrictions on movement, employment, and association; emotional distress including anxiety, humiliation, and stigma; and other damages to be proven at trial.

52. Plaintiff's economic damages include lost earnings exceeding $100,000 to date, representing the difference between his but-for unrestricted earning capacity as a commercial driver and his actual, supervision-suppressed earnings. Plaintiff continues to suffer ongoing losses for each month he remains unable to pursue unrestricted commercial driving employment due to GPS monitoring, curfew restrictions, and mandatory treatment attendance requirements imposed as a direct consequence of his continued retention in the system described herein.

COUNT II: INJUNCTIVE AND DECLARATORY RELIEF

Against Defendant Macomber in Official Capacity and Defendant HOPE Psychotherapy, Inc.

53. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

54. The Eleventh Amendment does not bar prospective injunctive relief against state officials in their official capacity. Ex parte Young, 209 U.S. 123 (1908). Defendant Macomber, as Secretary of CDCR, has authority over the policies and practices governing parole discharge reviews and SOMP administration, including oversight of CDCR's contractual relationships with CASOMB-certified providers.

55. Plaintiff seeks:

(a) A declaration that the Discharge Review Report dated November 12, 2025, violated Plaintiff's procedural due process rights under the Fourteenth Amendment;

(b) A declaration that the "10-year parole term" eligibility criterion applied to Plaintiff is unconstitutional, ultra vires, and has no basis in Penal Code § 3001(a)(2) or any statute or regulation;

(c) A declaration that HOPE's treatment practices—including mandatory phase repetitions, unpublished completion criteria, routine homework losses, forced restarts, and policies making completion structurally impossible—violate the Fourteenth Amendment's due process requirements;

(d) A declaration that CDCR's wholesale adoption of HOPE's arbitrary treatment characterizations without independent review, combined with the financial incentive structure, violates the impartial-tribunal and non-delegation requirements of the Due Process Clause;

(e) An injunction requiring Defendants to conduct a new discharge review for Plaintiff within 30 days of this Court's order, using constitutionally adequate procedures, including: proper score aggregation; accurate, non-contradictory factual characterizations; mandatory CTM documentation and Form 3043; written good-cause findings; and notice with opportunity to respond;

(f) An injunction requiring correction of Plaintiff's parole records to remove the fabricated eligibility criterion and internally contradictory treatment characterizations;

(g) An injunction prohibiting Defendants from future reliance on fabricated eligibility criteria or any linkage of treatment completion to parole discharge in violation of § 3574(f)(1), and requiring CDCR to terminate its delegation of liberty-

affecting completion decisions to HOPE unless and until HOPE adopts standardized, published, appealable criteria;

(h) An injunction requiring Defendant Macomber to submit, within 90 days, a plan ensuring that CDCR's parole discharge procedures comply with constitutional due process requirements.

COUNT III: PROCEDURAL DUE PROCESS – DELEGATION WITHOUT SAFEGUARDS

(Fourteenth Amendment)

Against Both Defendants

56. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

57. CDCR has delegated to HOPE Psychotherapy, Inc.—a private, for-profit entity—the authority to make treatment "completion" determinations that directly control parole discharge eligibility, a core function affecting individual liberty. This delegation is made without adequate standards governing how HOPE must exercise its delegated authority, without procedural safeguards to ensure fairness to parolees, and without meaningful state oversight of HOPE's determinations. Due process requires that when a state delegates liberty-affecting decisions to a private party, it must provide sufficient standards and oversight to ensure fundamental fairness. See *Mathews v. Eldridge*, 424 U.S. 319 (1976); cf. *Carter v. Carter Coal Co.*, 298 U.S. 238 (1936) (delegation of regulatory authority to private parties with conflicting interests violates due process).

58. The unconstitutional nature of this delegation is compounded by HOPE's direct financial interest in the outcome of its determinations. Every parolee retained in treatment generates ongoing per-session revenue; every parolee discharged terminates that revenue stream. There is no success bonus or completion incentive. Delegating liberty-affecting decisions to a financially interested private party, without independent review, violates fundamental due process.

59. Plaintiff has been trapped in this unconstitutional system for over five years, with no completion criteria, no appeal mechanism, and no lawful exit. This ongoing deprivation of liberty entitles Plaintiff to declaratory and injunctive relief.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court enter judgment in his favor and against Defendants, and award the following relief:

(A) Compensatory damages against Defendant HOPE Psychotherapy, Inc. in an amount to be proven at trial, including economic damages for lost employment opportunities, GPS monitoring costs, and treatment program fees, and non-economic damages for emotional distress, anxiety, humiliation, stigma, and restrictions on liberty, movement, and association;

(B) Punitive damages against Defendant HOPE Psychotherapy, Inc. for its reckless and callous indifference to Plaintiff's federally protected rights, including its continued application of practices judicially condemned in In re Dwyer and challenged in ACSOL v. Macomber;

(C) Declaratory relief as set forth in Count II;

(D) Injunctive relief as set forth in Counts II and III;

(E) Nominal damages of $1 against Defendant HOPE Psychotherapy, Inc.;

(F) Reasonable attorney's fees and costs pursuant to 42 U.S.C. § 1988;

(G) Pre-judgment and post-judgment interest at the maximum legal rate;

(H) Such other and further relief as this Court deems just and proper.

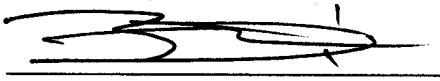
Plaintiff expressly disavows any relief that would necessarily imply the invalidity of the duration of his parole custody unless and until that custody is first invalidated by authorized state proceedings or a federal habeas corpus petition. *Heck v. Humphrey*, 512 U.S. 477 (1994); *Nettles v. Grounds*, 830 F.3d 922 (9th Cir. 2016) (en banc).

DEMAND FOR JURY TRIAL

Plaintiff demands a trial by jury on all issues so triable.

Dated: February 17, 2026

Respectfully submitted,

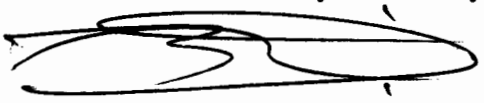


BRENDAN NGEHSI NEWANFORBI
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VERIFICATION

I, BRENDAN NGEHSI NEWANFORBI, declare under penalty of perjury under the laws of the United States of America that the foregoing allegations are true and correct to the best of my knowledge, and that **Exhibit A** is a true and correct copy of the CDCR Form 1502-DR Discharge Review Report, **Exhibit B** is a true and correct copy of the *In re Dwyer* order, and **Exhibit C** is a true and correct copy of the *Alliance for Constitutional Sex Offense Laws v. Macomber* demurrer order referenced herein.

Executed on this 17th day of February, 2026.



BRENDAN NGEHSI NEWANFORBI

EXHIBIT LIST

Exhibit A: CDCR Form 1502-DR Discharge Review Report, dated November 12, 2025 (incorporated by reference)

Exhibit B: *In re Dwyer*, No. SC-080355A (San Mateo Super. Ct. Mar. 20, 2023) (notice of judicial condemnation)

Exhibit C: Order Overruling Demurrer, *Alliance for Constitutional Sex Offense Laws v. Macomber*, No. 23STCP02378 (L.A. Super. Ct. Dec. 13, 2023) (notice of ongoing challenge)

EXHIBIT A

STATE OF CALIFORNIA
DISCHARGE REVIEW REPORT
CDCR 1502-DR (Rev 01/22)

DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

DISCHARGE REVIEW REPORT

SECTION I PAROLEE PROFILE — Case Type: PC3000(b)(5)(B)

CDC Number:	Print Name (Print Last, First, MI):		Region:	Parole Unit:
BF3571	NEWANFORBI, BRENDAN, NGEHSI		N	STOCKTON 2 GPS
CSRA Score:	**Supervision Category:**	**Discharge Review Date:**	**Controlling Discharge Date:**	
2	SA	12-01-2025	12-02-2030	

Commitment Offenses:
PC289(a)(1)(A)[01] Penetration w/Force/Violence/Fear of Immediate Bodily Injury, PC220(a)(1)[01] Assault with Intent to Commit Specific Sex Offense

Imminent Discharge: [X] | DNA Sample Obtained: [X] YES [ ] NO | Non-Controlling Offenses: [X] YES [ ] NO

Commitment Offense Subject To PC 667.5(C): [X] YES [ ] NO | Commitment Offense Subject To PC1192.7 9 (C) or 1192.8: [X] YES [ ] NO

PC 290 Registrant: [X] YES* [ ] NO * If Yes, Sex Offender Static Risk Assessment: Score: 4

Other Registration Requirements: [ ] PC 457.1 [ ] PC 186.30 [X] NONE

Circumstances of Commitment Offense (Note any weapons used or possessed during the controlling or non-controlling offense):

According to Santa Clara County Probation Officer's Report, Santa Clara Police Department officers responded to a report of sexual assault which occurred at the Santa Clara University. The Victim (V1) stated she left her friend's dormitory at 2000 hours and proceeded to her dormitory. As she was walking, a man later identified as Brendan Newanforbi, approached her from behind, picked her up and carried her approximately five feet. Newanforbi dropped V1 on the ground and inserted his fingers into her vagina. V1 screamed and resisted Newanforbi so Newanforbi fled the scene. V1 was transported to the Valley Medical Center for a SART exam. V1 sustained abrasions to her left knee, left hip area, left wrist and complained of pain to her vagina. Officers reviewed surveillance footage from cameras and showed a figure running, and a grey ford mustang fleeing the scene. On 03/03/2017, Newanforbi was stopped for speeding and taken into custody for matching the description. Newanforbi self- admitted to groping V1 and stated he had uncontrollable urges and needed help.

Prior Criminal History: (Note any history of weapons, serious or violent felonies and any other relevant criminal information):
[X] Criminal History Attached (Dated no more than 30 days prior to due date of DRR)
01/12/18-PC 289(A)(1)(A): SEXUAL PENETRATION W/FORCE/ETC, PC 220(A)(1): ASSAULT:W/INTENT TO RAPE (6 YEARS PRISON)

Special Conditions of Parole: [X] CDCR Form 1515- Addendum Attached (* If necessary.)
[ ] None [ ] Anti-Narcotic Testing [ ] Drug Treatment [X] No Alcohol [ ] Attend POC [X] * Other

Parole Violations: (Note any parole violations, arrests, pending investigations and/or dispositions incurred during this period of review)
2025-03-04 FAILURE TO ATTEND SEX OFFENDER TREATMENT. COP (Verbal Reprimand)
2025-06-26 FAILURE TO ATTEND SEX OFFENDER TREATMENT. COP (Referral to PACT Program, Verbal Reprimand)
2025-07-15 FAILURE TO CHARGE GPS TWICE PER DAY EVERY 12 HOURS FOR 1 FULL HOUR OF CHARGING COP (Verbal Reprimand)
2025-08-16 FAILURE TO PROPERLY CHARGE GPS DEVICE COP (Referral to PACT Program, Verbal Reprimand)

Gang Activity Or Affiliation: (Note any past or present involvement in any prison, criminal, or street gang)
[X] None Validated: [ ] Member [ ] Associate [ ] Affiliate [ ] Dropout [ ] Active [ ] Inactive

Gang:

Current or past activity:

Mental Health Factors (Note mental health status of the parolee and his or her compliance with any mental health treatment):
[ ] None [ ] Voluntary [X] CCCMS [ ] EOP [ ] MDO
If CCCMS/EOP/MDO: [X] Compliant [ ] Non - Compliant
[X] BHR Report Attached (Dated no more than 45 days prior to due date of DRR)

Restitution (Note any fine and/or restitution balance at the time of review, and any effort to satisfy the fine and/or restitution balance):
[X] None [ ] Satisfied [ ] Not Satisfied Amount remitted to date: $ 0 Outstanding balance: $ 0

Employment (Note any employment, educational or vocational training):
Employment [X] None [ ] Employed [ ] Full Time [ ] Part Time
Student: [X] None [ ] Student [ ] Full Time [ ] Part Time

DISTRIBUTION: Original to C-File; Copy to Field File; Copy to Parolee

STATE OF CALIFORNIA
DISCHARGE REVIEW REPORT
CDCR 1502-DR (Rev 01/22)

DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

DISCHARGE REVIEW REPORT

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	NEWANFORBI, BRENDAN, NGEHSI	N	STOCKTON 2 GPS

Employer Name (If applicable):

Program Study (If applicable):

Position:

STATE OF CALIFORNIA
DISCHARGE REVIEW REPORT
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DEPARTMENT OF CORRECTIONS AND REHABILITATION
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SECTION II PAROLEE DYNAMIC PROFILE CATEGORY: SA CSRA: 2

Objective 1: The parolee has maintained residence stability in a positive living environment.

1=Has been in the same pro-social living situation for eight months or longer; or less than eight months, but at least six months, when the most recent move was to improve overall living conditions, and will continue to be available to the parolee.

Objective 2: The parolee's time has been structured around pro-social activities geared towards self-reliance.

3=Time is unstructured and generally unaccounted for; involvement in pro-social activities is not evident.

Objective 3: The parolee has been compliant with his or her general and special conditions of parole.

3=The parolee has not met the rating standard for #1 or #2 above.

Objective 4: The parolee was referred and participated in programming for his or her top three criminogenic needs.

3=Failed to attend, participate, or complete.

Objective 5: The parolee has affiliated himself or herself with other pro-social individuals.

2=Parolee is seeking to terminate anti-social relationships, but still maintains some anti-social relationships.

Objective 6: Parolee has been referred to and participated in required sex offender treatment.

2=Attended and partially participated in sex offender treatment.

Parolee Dynamic Profile Recommendation: **Retain On Parole**

Aggravating Factor(s) to Consider:

Supervised Person Brendan Newanforbi is unemployed, incurred multiple parole violations during this review period, and has not completed sex offender treatment.

Mitigating Factor(s) to Consider:

Supervised Person Brendan Newanforbi has stable residence with his family.

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SECTION III RECOMMENDATION

Parole Agent Recommendation:

☐ Retain on Parole ☒ Discharge Denied/No Action

☐ Discharge Controlling Offense Approved ☐ Discharge Non-Controlling Offense Approved

Parole Agent Comments / Recommendation:

Objective 1: Residence - Newanforbi currently has stable residence with his family in Stockton.

Objective 2: Employment - Newanforbi is currently unemployed.

Objective 3: General/Special Conditions - Newanforbi has incurred multiple parole violations during this review period.

Objective 4: Addressed Criminogenic Needs - Newanforbi's Criminogenic Needs for Substance Abuse rated Probable and Unlikely for all other categories.

Objective 5: Pro-Social - Newanforbi does not appear to have a large social circle.

Objective 6: Sex Offender - Newanforbi is not currently titrated and is not in the maintenance phase of his treatment with HOPE.

Supervised Person Brendan Newanforbi is a 29-year-old first termer committed to the California Department of Corrections and Rehabilitation for Penal Code 289(a)(1)(A) Penetration w/Force/Violence/Fear of Immediate Bodily Injury for 6 years in state prison. Newanforbi appears to have stable residence with his family in Stockton, CA. Newanforbi is currently unemployed and not attending school. Newanforbi has incurred multiple parole violations during this review period for failure to attend sex offender treatment and failure to charge Global Positioning System. Newanforbi is currently attending sex offender treatment and has not completed treatment. Based on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), Newanforbi is not eligible for EDC at this time due to having a 10-year parole term. Newanforbi has only completed approximately 4 years of the required 6.5 years of supervision. Continued supervision is both warranted and recommended at this time. Recommend discharge be denied at this time.

Parole Agent (Print Name):	Electronically Signed by:	Badge #:	Date Signed:
LONG MOUA	LONG MOUA	7472	11-14-2025

Unit Supervisor Actions:

☒ Review ☒ Decision ☐ Retain On Parole ☒ Discharge Denied/No Action ☐ Refer to BPH

☐ Discharge Controlling Offense Approved ☐ Discharge Non-Controlling Offense Approved

☒ Refer to Parole Administrator

Unit Supervisor Comments/ /Decision /Recommendation:

The subject should be commended for maintaining compliance with parole supervision. The subject is unemployed, and the subject lives with his family in Stockton. The subject has no restitution obligations and, the subject has had five parole violations this period. Subject's Sex Offender Treatment Progress (HOPE): 10/15/2024 Stable 6/LSCMI 5. Level 2 below average Risk. Missed 6 sessions this Parole Period. Core Phase of treatment and working in Block 1 Module 4/7. Subject has presented homework on Victim Empathy. Does take full responsibility of offense. Subject has a relapse prevention plan to assist in his alcohol and marijuana use. Current focus on problem solving and relationship stability focusing on healthy relationships. Not eligible for titration at this time. Currently scheduled for 2 groups a week and 1 monthly individual. HOPE SOT recommends continued treatment. Based on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), Subject is not eligible for EDC at this time due to having a 10-year parole term. Eagan has only completed approximately 4 years of the required 6.5 years of supervision. I concur with the Parolee Dynamic Profile and AOR's recommendation "Retain on Parole". Continued DAPO supervision is warranted and recommended.

Unit Supervisor (Printed Name):	Electronically Signed by:	Badge #:	Date Signed:
GARY NOGUCHI	GARY NOGUCHI	7284	11-19-2025

Parole Administrator Actions:

☒ Review ☒ Decision ☐ Retain On Parole ☒ Discharge Denied/No Action ☐ Refer To BPH

☐ Discharge Controlling Offense Approved ☐ Discharge Non-Controlling Offense Approved

Parole Administrator Comments / Decision/ Recommendation:

Concur with the Unit Supervisor, continued parole supervision is warranted and recommended at this time.

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DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

DISCHARGE REVIEW REPORT

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	NEWANFORBI, BRENDAN, NGEHSI	N	STOCKTON 2 GPS

Parole Administrator (Print Name):	Electronically Signed by:	Badge #:	Date Signed:
KEELY DODD	KEELY DODD	6462	11-19-2025

Parolee Provided Copy (Date)

☐ Mailed By (Initials): ☐ Delivered By (Initials):

AGENT OF RECORD CONTACT INFORMATION AS OF 11/19/2025

AGENT NAME: ROJO, JOSEELYN

AGENT CONTACT: JOSEELYN.ROJO@CDCR.CA.GOV, (510) 871-7372 (Cell)

PAROLE UNIT: STOCKTON 2 GPS, 612 CARLTON AVENUE, STOCKTON, CA, 95203, (209) 948-7652

DISTRIBUTION: Original to C-File; Copy to Field File; Copy to Parolee

EXHIBIT B

ENDORSED FILED
SAN MATEO COUNTY
MAR 20 2023
Clerk of the Superior Court
By VALERIE HRONIS
DEPUTY CLERK

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN MATEO

In re:	Case No. SC-080355A
FREDERICK DWYER.	HC-3020
On Habeas Corpus.	**ORDER**

FACTS AND ALLEGATIONS

On January 23, 2015, Petitioner pled no contest to one count of Penal Code section (PC §) 286(c)(2) (sodomy by force). He also admitted allegations pursuant to Penal Code section 1192.7(c)(4) and 667.5(c)(4) (admitting that the current offense was serious and violent). On March 10, 2015, the Court denied probation and sentenced Petitioner to the lower term of three years in the California Department of Corrections and Rehabilitation. As a condition of sentence, Petitioner was ordered to register pursuant to the terms of Penal Code § 290.

Petitioner was released on parole in 2017. Among other conditions, he was ordered as a special condition of parole to participate in a sex offender management program as required by Penal Code § 3008(d). In the present writ before the court, Petitioner challenges the continued imposition of the special condition of parole on two grounds: 1) that he has already successfully completed a sex offender management program as required, but is currently being ordered to complete a second program; and 2) he asks the court to exercise its discretion pursuant to Penal

Code § 3008(d) to limit the length of the sex offender management treatment program to a term less than the entire term of his parole.

Petitioner submitted his writ petition on June 22, 2021 in Alameda County Superior Court. The People, through the Attorney General, submitted an informal response requesting denial of the petition on August 20, 2021. Petitioner filed a reply on August 27, 2021. The Honorable Morris Jacobson ordered the writ petition transferred to San Mateo County Superior Court on October 22, 2021, finding that venue was more appropriate in the committing court. This Court issued an order to show cause on January 13, 2022. Respondent filed their return on April 14, 2022, and Petitioner filed a Traverse and Denial on May 11, 2022. This Court issued an order for evidentiary hearing on disputed facts on October 20, 2022. The hearing was continued and ultimately heard on March 9, 2023. Petitioner testified on his own behalf. Respondent presented the testimony of Dr. Cristina Loree, Gilberto Haro, and Daniel Stout. The parties stipulated to the admission of each of their marked exhibits. The Court has considered all filed written pleadings, all admitted exhibits, the testimony of each witness, and the arguments of counsel in rendering the following decision.

DISCUSSION

I. Factual Findings

The facts established at the evidentiary hearing in this matter are largely undisputed. Pursuant to the parties' written stipulation filed March 2, 2023, Petitioner was released on parole on May 30, 2017. He has suffered one parole violation to date in September 2019 for a physical altercation with his wife. The altercation did not result in the filing of a new criminal case, and Petitioner's parole violation resulted in a custodial sanction of six days. Petitioner has otherwise complied with his parole conditions, and has been recommended for early discharge from parole. The Board of Parole Hearings denied the recommended early discharge because Petitioner has not yet served the minimum term of parole required for his commitment offense.

Pursuant to a special condition of parole, Petitioner is required to "report to and actively participate in a Division of Adult Parole Operations approved sex offender treatment program.

The program will require you to agree and sign necessary documents and waivers as well as polygraph examinations, limited to questions about the success of the sex offender treatment program, the crime(s) for which you were convicted, compliance with conditions of parole, sexual history and related criminal behavior past, present, and/or future." (Exhibit 3H). At the time of Petitioner's release on parole, the Division of Adult Parole Operations in Petitioner's area of supervision contracted with a program called Shaping Success. Shaping Success is a California Sex Offender Management Board (CASOMB) approved sex offender management program. The evidence at the hearing established that the Shaping Success program consisted of a "treatment" phase and a "maintenance" phase. During the treatment phase, Petitioner testified that he was initially required to participate in weekly group meetings and individual monthly counseling sessions with Shaping Success. He participated in treatment with Shaping Success for three years. On January 12, 2021, the Shaping Success program issued a "Statement of Successful Treatment Completion" regarding Petitioner's treatment. (Exhibit 9H). The certificate stated, in relevant part on its face, that:

> [t]he term 'successful treatment completion' is defined as having 'demonstrated sufficient progress in meeting the goals and objectives of an individualized treatment plan' at the time of release from treatment. ... Treatment completion does not mean that the client has successfully completed the sex offender management program, or that the client will never reoffend. When active treatment ends, supervision and other elements of the Containment Model may continue. These elements may include, but are not limited to, monitoring, follow-up sessions, aftercare meetings, polygraph testing, risk assessments, and other services which may be required as part of a sex offender management program, i.e., CASOMB Sex Offender Treatment Provider Agency Certification Requirements.

At the completion of the "treatment" phase of Shaping Success, Petitioner was moved into the "maintenance" phase of the program. Petitioner testified that in the "maintenance" phase, he was no longer required to attend any group sessions and his individual sessions were reduced to once a month. He was also required to participate in annual polygraph examinations.

After Petitioner had completed the treatment phase of Shaping Success, the Division of Adult Parole Operations contracted with a new CASOMB provider for sex offender

management – the HOPE program. Petitioner was required to participate in treatment at the HOPE program beginning on March 5, 2021. (Exhibit 6H). Dr. Cristina Loree, Executive Director of Clinical Training and Development at the HOPE Program, testified that HOPE's sex offender management program consists of four phases. When participants first report to the program, the program administers static and dynamic risk assessment tools and obtains a full biopsychosocial history of the participant. Clients are referred to treatment based on their risk assessment scores. The first phase of the program is preparatory for treatment, consisting of seven modules. The second phase of the program, referred to as "core treatment", consists of twenty four modules. In the core treatment phase, sex offenders designated as "high risk" based on their risk assessment scores are required to attend groups twice weekly and once a month individually. "Low risk" offenders participate in groups once weekly and individual sessions once a month. The third phase of the program is "maintenance", consisting of twelve modules. In the maintenance phase, participants have group meetings no less frequently than every other week, and individual sessions no less than quarterly. Completion of all twelve modules is required to complete the maintenance phase, and group sessions are the primary method that the program uses to assess completion of the modules. Upon completion of maintenance, the fourth phase of the program is "aftercare". In aftercare, participants have no group sessions, individual meetings only as needed at the discretion of their clinicians, and twice yearly polygraph examinations. Dr. Loree characterized participation in "aftercare" as voluntary for those no longer on parole, but mandatory for those who have not yet discharged from parole based on the need to maintain a connection to treatment. Dr. Loree testified that she believes a continuous connection to treatment is required for all sex offender parolees based on Penal Code § 3008's provision that the duration of a sex offender management program can be up to the entire term of parole.

When HOPE became the sex offender management provider for Petitioner's region, they devised the following general process for participants who were in the maintenance phase of the Shaping Success program. The participants were required to complete the seven module treatment preparation phase, submit a non-deceptive polygraph examination, and undergo a

risk assessment. Upon completion of those three requirements, participants were then moved into the maintenance phase of the HOPE program. Dr. Loree was unable to describe exactly when Petitioner went through that screening process and was moved to maintenance. Petitioner testified that when he first began with HOPE he was required to attend groups twice weekly in addition to individual sessions for the first three months of his participation in the program. After that, Petitioner testified that he was moved to the maintenance phase of the HOPE program – he currently attends groups once every two weeks and individual sessions quarterly. Dr. Loree confirmed that this is the lowest level of treatment available in HOPE's maintenance phase. Dr. Loree testified that Petitioner has completed four of the twelve maintenance phase modules. His attendance has been "near perfect". His STATIC-99R score is 4, which is categorized as high risk. The STATIC-99R measures risk factors that generally do not change over time with the exception of age at last release from prison. HOPE has administered two dynamic risk assessments to Petitioner – the Stable-2007 and the LS/CMI. His most recent Stable-2007 score is 2, and his most recent LS/CMI score is 6. Both are categorized as low risk. (Exhibit 7). Dr. Loree testified that Petitioner's overall risk assessment, taking both the STATIC-99R score and the dynamic risk assessment scores into account, is average risk – classified as an 8% likelihood of sexual recidivism within 5 years as compared to the overall population of individuals convicted of sexually motivated offenses.

Petitioner is married, has stable housing, and is presently employed. He is the sole wage earner in his household. He has reached journeyman level in his carpenter's union. He is enrolled in community college courses in pursuit of his Associate of Arts degree, with the goal of becoming a construction superintendent. Since the 2019 parole violation, his parole performance has been positive. (Exhibit 5H). He asserts that the increased frequency of group meetings since his transition from the Shaping Success program to the HOPE program is interfering with his ability to meet his employment obligations.

II. Legal Discussion

A. Failure to Exhaust Remedies

The Attorney General argues that this Court should deny the writ because Petitioner has failed to exhaust his administrative remedies before seeking writ relief, citing In re Muszalski (1975) 52 Cal.App.3d 500, 508. While it is true that exhaustion is typically required before a writ of habeas corpus may be granted, there is an exception to the requirement of exhaustion where an aggrieved party "can positively state what the administrative agency's decision in his particular case would be." In re Thompson (1985) 172 Cal.App.3d 256, 262. Petitioner is not "required to pursue a futile remedy." In re Thompson, *supra*, at 263.

In the instant petition, Petitioner filed a grievance on June 11, 2021 prior to filing the instant writ petition. The grievance and response were admitted as Exhibits 7H and 8H. Petitioner's grievance sought to be "placed back on maintenance with the same frequency of contact that I had with Shaping Success provider." (Exhibit 7H.) On July 28, 2021, Petitioner's grievance was denied on the grounds that Penal Code § 3008(d)(2) and Petitioner's special condition of parole required him to participate in sex offender treatment "while under parole supervision", and that HOPE's program staff had stated that Petitioner would be moved to HOPE's maintenance phase with once per week group sessions and monthly individual sessions. (Exhibit 8H.) At the hearing, the Court heard the testimony of Gilberto Haro, presently responsible for overseeing the operations of five parole units within the East Bay where Petitioner is supervised. Mr. Haro participated in the review and denial of Petitioner's grievance. He supervises Petitioner's assigned parole agent. Mr. Haro testified unamibiguously that the treatment provider determined Petitioner's appropriate level of treatment and parole denied Petitioner's grievance in deference to that decision. Mr. Haro further testified that he understands Penal Code § 3008(d)(2) to require a sex offender parolee to participate in a sex offender management program for the entire term of parole.

The Attorney General further presented the testimony of Daniel Stout, who previously supervised the East Bay parole region and is currently assigned to the sex offender unit of parole headquarters. Mr. Stout participates in the drafting and editing process for contracts between CASOMB certified sex offender management program providers and the Division of Adult Parole Operations. He testified that it is the policy of the California Department of

Corrections and Rehabilitation and the Division of Adult Parole Operations that a sex offender management program as defined in Penal Code § 3008 cannot be completed short of discharge from parole. This was consistent with Dr. Loree's testimony of her understanding that Penal Code § 3008(d)(2) requires sex offender parolees to maintain "some connection to treatment" for the entire period of parole until discharge. Dr. Loree testified that Petitioner would be required to complete all twelve modules of maintenance with the HOPE program before moving to aftercare.

Petitioner's grievance sought admission to "maintenance" with the same level of program contact that had been required at Shaping Success – monthly individual check-ins and no group treatment. The testimony at the evidentiary hearing established that the minimum level of supervision required for "maintenance" at HOPE is participation in group meetings every other week and quarterly individual sessions. The testimony of the parole witnesses established that any appeal of Petitioner's grievance denial would be a futile act – the Division of Adult Parole Operations defers to the treatment provider's determination of the frequency of treatment, and HOPE's minimum maintenance treatment requirement exceeds the amount of programming required by the former provider. In this case, Petitioner can positively state what the administrative agency's decision in his particular case would be. The Court finds that he is not required to exhaust remedies under these circumstances.

B. Mootness/Unripe for Review

The Attorney General further contends that the petition is moot or unripe for review because Petitioner has already "received the relief he requested." Respondent's Return to the Order to Show Cause; Supporting Memorandum of Points and Authorities, p. 13, L. 23. It is apparent from the face of both the grievance and the petition for habeas corpus that Petitioner has not received the relief that he requested. Petitioner requested to be "placed back on maintenance *with the same frequency of contact that I had with Shaping Success provider*". (emphasis added by the Court). The evidence at the hearing amply demonstrated that not only has Petitioner **not** been placed in treatment at the same frequency of contact as previously required, but that the structure of the HOPE program makes it impossible for him to be placed

on the same level of contact. He will either be included in the maintenance phase, which requires group meetings every other week that Shaping Success did not require; or he will eventually transition to aftercare, which includes individual check-ins "as directed" rather than monthly.

Further, Petitioner's writ relief request seeks relief beyond that described in his parole grievance. He seeks a declaration by the Court that he has successfully completed the required sex offender management program defined in Penal Code § 3008, and that the Court order the Department of Corrections and Rehabilitation to cease requiring Petitioner's participation in an "additional" sex offender management program. As discussed above in relation to exhaustion, it is apparent from the testimony offered at the hearing that the Division of Adult Parole Operations takes the position that a "sex offender management program" cannot be completed prior to discharge from parole, and that Petitioner's completion of the treatment phase of the Shaping Success program does not satisfy the obligation for completion of a "sex offender management program". The Attorney General's contention that the petition is moot or unripe lacks merit.

C. Length of Participation in Sex Offender Treatment/Management

1. Habeas Corpus Relief

The fundamental goals of parole are to "'help individuals reintegrate into society as constructive individuals'", "'to end criminal careers through the rehabilitation of those convicted of crime'", and to [help them] become self-supporting." In re Hudson (2006) 14 Cal.App.4th 1, at p. 9, citing In re Stevens (2004) 119 Cal.App.4th 1228 at 1233. A condition of parole will not be held invalid unless it 1) has no relationship to the crime of which the offender was convicted, 2) relates to conduct which is not in itself criminal, and 3) requires or forbids conduct which is not reasonably related to future criminality. Conversely, a condition of parole which requires or forbids conduct which is not itself criminal is valid if that conduct is reasonably related to the crime of which the defendant was convicted or to future criminality. People v. Lent (1975) 15 Cal.3d 481 at 486.

Penal Code § 3008(a) requires the Department of Corrections and Rehabilitation to "ensure that all parolees under active supervision who are deemed to pose a high risk to the public of committing sex crimes, as determined by the State-Authorized Risk Assessment Tool for Sex Offender (SARATSO), ... are placed on intensive and specialized parole supervision." Penal Code § 3008(c) further requires the Department to "develop control and containment programming for sex offenders who have been deemed to pose a high risk to the public of committing a sex crime, as determined by the SARATSO, and **shall** require participation in appropriate programming as a condition of parole." (emphasis added by the Court). Penal Code § 3008(d)(2) provides that:

> Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court. Participation in this program applies to every person described without regard to when his or her crimes were committed.

Petitioner was convicted of sodomy by force, with the resulting requirement that he register as a sex offender pursuant to Penal Code § 290. The Static-99R is the SARATSO used by the Department to determine risk level, and the hearing evidence establishes that Petitioner's SARATSO score places him in the "high-risk" category. The challenged special condition of parole requiring him to "report to and actively participate in a Division of Adult Parole Operations approved sex offender treatment program" is statutorily required. Applying the Lent test, Petitioner's habeas corpus claim fails. On its face, the challenged special condition of parole is reasonably related both to the crime of which Petitioner was convicted and to his future criminality.

Petitioner's argument that his completion of the "treatment" phase of Shaping Success qualifies as completion of the single sex offender management program required by Penal Code § 3008 is without merit. Petitioner's completion of group counseling with Shaping Success did not result in the termination of his further participation in the program. He was still required to report monthly for individual check-ins and to complete periodic polygraph

testing. His certificate of treatment completion expressly stated that it was not certification that had completed the sex offender management program and that further requirements applied. Petitioner never "completed" a sex offender management program, and the current requirement for participation in the HOPE program is a continuation of the original program with a different provider – not a second program. Petitioner's habeas corpus claim is denied.

2. Court Approval of Length of Participation in Sex Offender Management Program per Penal Code § 3008(d)(2)

Petitioner further asks the Court to exercise the statutory discretion conferred by Penal Code § 3008(d)(2) to set the length of the required sex offender management program in his case as something less than the entire period of parole. The Court grants that request for the following reasons. Penal Code § 3008(d)(2) fixes the length of a sex offender management program as no less than one year and up to the entire period of parole "as determined by the sex offender management professional in consultation with the parole officer and as approved by the court." The evidence in this case demonstrates that the "consultation" contemplated by the statute between the sex offender management professional and parole in this case worked only one way – the program told parole what was required and parole deferred. The HOPE program's determined level of necessary treatment for parolees who had completed Shaping Success's treatment phase was not dependent on individualized criteria. All parolees moving into the HOPE program were required to complete at least two new sets of group counseling – the "pre-treatment" seven module phase, and the "maintenance" twelve module phase – without regard to their individual risk assessments[1], likelihood of re-offense, or history on parole supervision. Both the CASOMB provider and the Division of Adult Parole Operations take the position that a sex offender cannot successfully "complete" a sex offender management treatment program short of being discharged from parole. The discretion

[1] While Dr. Loree's testimony established that HOPE conducted both static and dynamic risk assessments on intake, the testimony also established that all offenders had to complete the seven module "pre-treatment" phase, and all were placed into the twelve module maintenance phase regardless of score. There was apparently no evaluation as to whether maintenance or aftercare placement was appropriate, and no explanation of how the Shaping Success treatment "curriculum" differed from HOPE's such that HOPE's programming was non-duplicative of that already completed by Shaping Success parolees in the "maintenance" phase.

conferred by statute on the Division of Adult Parole Operations and this CASOMB provider is apparently being exercised in all cases to require participation in a sex offender management program for the entire term of parole, apparently without reference to the individualized performance of each parolee. Discretion exercised in that fashion vitiates the Legislature's directive that program participation should last at least one year and "up to" the entire parole term, and effectively requires all parolees participating in this program to do so for the entire term of parole.

The Court, in other cases, has certainly encountered parolees for whom public safety demands participation in a sex offender management program for the entire term of parole. Such a requirement may be justified by a parolee's resistance to supervision, refusal to genuinely engage in treatment, refusal to accept responsibility for the commitment offense, and other similar factors. None of those considerations are present in Petitioner's case. The Legislature's guidance on the purpose of parole is as follows:

> [T]he period immediately following incarceration is critical to successful reintegration of the offender into society and to positive citizenship. It is in the interest of public safety for the state to provide for the effective supervision of and surveillance of parolees, including the judicious use of revocation actions, and to provide educational, vocational, family, and personal counseling necessary to assist parolees in the transition between imprisonment and discharge. Penal Code § 3000(a)(1).

In this case, the undisputed evidence establishes that Petitioner is meeting the goals of successful reintegration into society. His prior CASOMB-certified provider certified to parole that he had "demonstrated sufficient progress in meeting the goals and objectives of an individualized treatment plan" so as to no longer require group counseling. (Exhibit 9H). He has stable housing and employment. He has progressed in his trade and has enrolled in community college to advance his career prospects. He has a stable family. His performance on parole for at least the last three years has been so positive that his supervising parole officer has recommended his complete discharge from parole supervision, and that recommendation was approved for submission to the Board by multiple supervisory layers of parole administration. Petitioner's other special conditions of parole require in relevant part:

continuous GPS monitoring, parole approval of employment, parole approval of residence with accompanying curfew hours, restrictions on travel, substantial restrictions on use of any computer with accompanying search conditions, and participation in both substance abuse and mental health treatment as directed by parole. Petitioner's other parole conditions are sufficient to meet the public safety requirement for effective supervision and surveillance. His continued engagement in the HOPE program does not serve to "assist [Petitioner] in the transition between imprisonment and discharge", since his parole agent and that agent's supervisors have apparently determined that he is ready for a recommended earned discharge. The Court exercises the authority conferred by Penal Code § 3008(d)(2) to disapprove any further participation in a sex offender management program as a condition of Petitioner's parole, and fixes the length of the required sex offender management program as terminating on March 20, 2023.

DISPOSITION

For the foregoing reasons, the Petition for Writ of Habeas Corpus is HEREBY DENIED. Pursuant to the authority granted by Penal Code § 3008(d)(2), the Court disapproves any further participation in a sex offender management program as a condition of parole, and fixes the length of the sex offender management treatment program required by his sentence as terminating on March 20, 2023.

DATED: _____

ELECTRONICALLY SIGNED

Judge Elizabeth M. Hill
Electronically signed.
Redwood City, CA
2023.03.20
12:24:08-07'00'

Elizabeth M. Hill
Judge of the Superior Court of California
San Mateo County

EXHIBIT C

DEPARTMENT 86 LAW AND MOTION RULINGS

Case Number: 23STCP02378 **Hearing Date:** December 13, 2023 **Dept:** 86

ALLIANCE FOR CONSTITUTIONAL SEX OFFENSE LAWS, INC. v. MACOMBER

Case Number: 23STCP02378

Hearing Date: December 13, 2023

[Tentative] ORDER OVERRULING DEMURRER

Respondent, Jeff Macomber, Secretary of the California Department of Corrections and Rehabilitation (CDCR), demurs to the petition for writ of mandate filed by Petitioners, Alliance for Constitutional Sex Offense Laws, Inc., Christopher Sandahl, Joshua Morales, Alexander Flores, John Doe # 1, and John Doe # 2 (collectively, Petitioners).

Petitioners' unopposed Request for Judicial Notice (RJN) of Exhibits A and B is granted.

SUMMARY OF PETITION ALLEGATIONS

The five individual Petitioners are parolees subject to the jurisdiction of the CDCR. Petitioner, Alliance for Constitutional Sex Offense Laws, Inc., is a non-profit organization. (Pet. ¶¶ 9-17.)

Petitioners contend "CDCR's regulations, policies, and practices are inconsistent with and in conflict with the statutory requirements of the 'Containment Model' of parole supervision codified in Penal Code section 3008, subds. (d)(1)-(d)(4), and related statutes." (Pet. ¶ 1.)

The petition alleges Penal Code section 3008, subdivision (d) and related statutes codify the Containment Model. (Pet. ¶¶ 20-24.) The petition explains Penal Code "Section 3008(d) requires each Registrant on parole to 'successfully complete **a** sex offender management program . . . as a condition of parole.' (Cal. Penal Code § 3008, subd. (d)(2), emphasis added.)" (Pet. ¶ 2.) "[T]he Legislature declared that 'the length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court.' (Cal. Penal Code § 3008, subd. (d)(2), emphasis added.) In other words, Section 3008(d) requires CDCR to provide Registrants the opportunity to 'complete,' and thereby terminate their participation in, the management program as early as one year after placement on parole." (Pet. ¶ 3.)[1]

As relevant to this demurer, the petition alleges, in conflict with Penal Code section 3008, subdivision (d), CDCR regulations, policy, and practice do not allow registrants to complete and discontinue the management program prior to discharge from parole. (Pet. ¶¶ 31-55, 57-60.) Among others, relevant allegations in support of this claim include the following:

> The only CDCR regulation that expressly implements Section 3008 and the management program it requires as a condition of parole is Title 15, Section 3573, of the Code of Regulations. . . . Notably, no provision of Section 3573 or any other regulation allows for the 'completion' of the management program. Nor does Section 3573 or any other regulation allow for termination of a Registrant's participation in the management program prior to discharge from parole, as Section 3008(d) contemplates. (Pet. ¶ 32.)
>
> Notably, the Operations Manual for CDCR's Division of Adult Parole Operations confirms that Registrants are retained in the management program for the duration of their parole term, regardless of whether continued participation is necessary. . . . (Pet. ¶ 33.)
>
> [U]pon information and belief, as a matter of policy and practice, CDCR does not permit any Registrant to 'complete' the management program prior to discharge from parole, as Section 3008(d) contemplates. Nor does CDCR otherwise allow a Registrant's participation in the management program to be terminated, as Section 3008(d) contemplates. Rather, CDCR and CDCR, as a matter of policy, retain all Registrants in a management program until their discharge date, regardless of whether they have completed the treatment curriculum, and regardless of the Registrant's individual treatment needs, supervision level, or risk of re-offense. (Pet. ¶ 34.)
>
> CDCR recently confirmed its policy in the habeas corpus proceeding captioned *In re Frederick Dwyer* (See Exh. A, Order dated March 20, 2023 in San Mateo Co. Super. Ct. Case No. SC-080355A, HC-3020). (Pet. ¶ 35 and Exh. A.)
>
> The Registrant challenged the requirement to repeat the treatment curriculum in a petition for writ of habeas corpus, invoking the Court's discretionary authority to terminate a sex offender management program after one year pursuant to Section 3008. The Court held an evidentiary hearing at which it found that the sole basis for retaining the Registrant in the management program was CDCR's policy of requiring all Registrants to participate in the program for the duration of parole, regardless of their individual treatment needs. (Exh. A, at p. 10.) CDCR agents including the Registrant's individual parole agent, as well the parole administrator for the East Bay District (Alameda and Contra Costa County), confirmed that policy in response to the Court's inquiry:
>
> [THE COURT:] Have you ever during the time that you have been in the positions that you have described were responsible to 290 registrants seen a participant in a sex offender management program complete such a program prior to[] termination or discharge from parole?
>
> THE [CDCR] WITNESS: No.
>
> THE COURT: Is it essentially the policy of the Department of Corrections that completion of the program is not possible before the discharge from parole program . . . ?
>
> THE [CDCR] WITNESS: Yes.

(Transcript of Hearing on February 9, 2023 in *In re Dwyer*, (San Mateo Co. Super. Ct. Case No. SC080355A, HC-3020). See also Order, Exh. A, at pp. 6-7 ["[A former East Bay region supervisor from CDCR] testified that it is the policy of the California Department of Corrections and Rehabilitation and the Division of Adult Parole Operations that a sex offender management program as defined in Penal Code § 3008 cannot be completed short of discharge 3 from parole."].) (Pet. ¶ 39.)

Based on these and other allegations, Petitioners seek a writ of mandate directing Respondent "to amend and revise its regulations implementing Penal Code section 3008(d), including its Regulations at Code of Regulations, Title 15, section 3573, to permit Penal Code section 290 Registrants supervised by CDCR on parole to complete and be terminated from the sex offender management program required by Penal Code section 3008(d) after one year in the program, and prior to discharge from parole." (Pet. ¶¶ 56-61 and Prayer ¶ A.)

In the second cause of action for declaratory relief, Petitioners pray for "a judgment declaring that Penal Code section 3008(d) prohibits CDCR from retaining, as a matter of policy or practice, all Registrants in a sex offender management program for the entire term of parole." (Pet. ¶¶ 63-68 and Prayer ¶ B.)

LEGAL STANDARD FOR DEMURRER

A demurrer tests the sufficiency of a pleading, and the grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (Code Civil Proc., § 430.30, subd. (a); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "We assume the truth of the allegations in the complaint, but do not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters." (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) The allegations in the petition must be liberally construed in favor of a petitioner on demurrer. (See *Mobil Oil Corp. v Exxon Corp.* (1986) 177 Cal.App.3d 942, 947.) "A demurrer must dispose of an entire cause of action to be sustained." (*Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)

ANALYSIS

<u>First Cause of Action – Writ of Mandate</u>

-

The first cause of action is for ordinary mandate pursuant to Code of Civil Procedure section 1085. There are two essential requirements to the issuance of an ordinary writ of mandate:

(1) a clear, present, and ministerial duty on the part of the respondent, and (2) a clear, present, and beneficial right on the part of the petitioner to the performance of that duty. (*California Ass'n for Health Services at Home v. Department of Health Services* (2007) 148 Cal.App.4th 696, 704.) "An action in ordinary mandamus is proper where . . . the claim is that an agency has failed to act as required by law." (*Id.* at 705.)

"Generally, mandamus is available to compel a public agency's performance or to correct an agency's abuse of discretion when the action being compelled or corrected is ministerial." (*AIDS Healthcare Foundation v. Los Angeles County Dept. of Public Health* (2011) 197 Cal.App.4th 693, 700.) "A ministerial act is an act that a public officer is required to perform in a prescribed manner in obedience to the mandate of legal authority and without regard to his own judgment or opinion concerning such act's propriety or impropriety, when a given state of facts exists." (*Kavanaugh v. West Sonoma County Union High School Dist.* (2003) 29 Cal.4th 911, 916.)

" 'While, of course, it is the general rule that mandamus will not lie to control the discretion of a court or officer, meaning by that that it will not lie to force the exercise of discretion in a particular manner . . . [it] will lie to correct abuses of discretion, and will lie to force a particular action by the inferior tribunal or officer, when the law clearly establishes the petitioner's right to such action.' " (*Flores v. Dept. of Corrections & Rehabilitation* (2014) 224 Cal.App.4th 199, 208.)

Respondent argue Petitioners have not stated a cause of action for mandate because:

(1) Petitioners failed to exhaust their administrative remedies in CDCR's "robust administrative grievance and appeal process (Memo 11:6-7); (2) the petition provides "no factual support" (Memo 12:18); (3) Petitioners "fail to establish a ministerial duty or valid rule making challenge" related to CDCR's regulations (Memo 16:12); and (4) Petitioners have an adequate legal remedy in a petition for writ of habeas corpus. (Memo 16:16.)

Petitioners assert the demurrer misapprehends the nature of the petition and fails to address all pertinent allegations. The court agrees. Respondent's demurrer does not persuasively address Petitioner's specific legal claim or all pertinent allegations, including those based on evidence from *In re Frederick Dwyer*. For that reason, and the additional reasons outlined below, the demurrer is overruled.[2]

Exhaustion of Administrative Remedies

Exhaustion of administrative remedies is "a jurisdictional prerequisite to judicial review." (*California Water Impact Network v. Newhall County Water Dist.* (2008) 161 Cal.App.4th 1464, 1489.)
"The exhaustion requirement applies whether relief is sought by traditional (Code Civ. Proc., § 1085) or administrative (Code Civ. Proc., § 1094.5) mandamus." (*Eight Unnamed Physicians v. Medical Executive Com.* (2007) 150 Cal.App.4th 503, 511.)

"Before seeking judicial review a party must show that he has made a full presentation to the administrative agency upon all issues of the case and at all prescribed stages of the administrative proceedings." (*Edgren v. Regents of University of California* (1984) 158 Cal.App.3d 515, 520.) There are exceptions to the exhaustion requirement, including "when the subject of the controversy lies outside the administrative agency's jurisdiction, when pursuit of an administrative remedy would result in irreparable harm, when the administrative agency cannot grant an adequate remedy, and when the aggrieved party can positively state

what the administrative agency's decision in his particular case would be." (*Edgren v. Regents of University of California, supra,* 158 Cal.App.3d at 520.)

Respondent contends CDCR's governing regulations establish a "robust administrative grievance and appeal process for inmates and parolees . . . to challenge imposed parole conditions or seek modifications of the conditions imposed before seeking judicial relief." (Memo 11:6-10 [citing Cal. Code Regs., tit. 15, § 3481, subd. (a).)[3] CDCR's exhaustion argument might be persuasive if Petitioners were seeking writs to terminate their own participation in a treatment program or other relief specific to their individual parole conditions. However, Petitioners do not seek such relief. Instead, Petitioners challenge the legality of CDCR's regulatory implementation of Penal Code section 3008 and the sex offender management and treatment program (SOMP) across the state. Petitioners "seek a writ of mandate directing CDCR to amend its regulations to authorize completion of and termination from the sex offender management program prior to discharge from parole." (See Pet. ¶ 6; see also ¶¶ 34-41, 56-61, and Prayer.)

The petition asserts certain CDCR promulgated regulations, in addition to its policies and practices for implementing such regulations, conflict with a controlling statute. Parties are "not required to exhaust administrative remedies" when they "attempt to enforce [an agency's] compliance with . . . controlling statutes," or when the challenged agency action "is based upon a regulation it promulgated." (*United Teachers-L.A. v. Los Angeles Unified School Dist.* (1994) 24 Cal. App. 4th 1510, 1519 n.4; *Sabatasso v. Superior Court* (2008) 167 Cal. App. 4th 791, 795.) While the regulation (Cal. Code Regs., tit. 15, § 3481, subd. (a)) does authorize the claimant to submit a grievance disputing a "policy" of CDCR, Respondent fails to develop an argument the regulation provides an administrative remedy for a challenge to CDCR's promulgated regulations and state-wide implementation of such regulations. Nor does Respondent cite any statutory authority or case law supporting its position.

Petitioners have sufficiently pleaded an excuse from the exhaustion requirement, including lack of adequate administrative remedy.

Petitioners Have Alleged Sufficient Facts to State a Cause of Action for Ordinary Mandate, including a Ministerial Duty

Respondent contends "[t]here is no factual support for the petitioners' claim that all sex offenders must participate in all aspects of the SOMP [supervision, treatment, and polygraph] for the duration of their statutory parole term." (Memo 12:18-20.) Citing allegations pertaining to the individual Petitioners, Respondent contends "the petitioners' cherry-picked facts do not support their claim that sex offenders are always held to their statutory maximum parole period and required to participate in SOMP for that duration . . . ." (Memo 13:12-14.)

To be sure, Petitioners are not required to provide "factual support" at the pleading stage. "A pleading 'is sufficient if it alleges ultimate rather than evidentiary facts.' " (*Foster v. Sexton* (2021) 61 Cal.App.5th 998, 1027.)

Petitioners have alleged the following ultimate facts, among others, in support of their traditional writ cause of action:

> [A]s a matter of policy and practice, CDCR does not permit any Registrant to 'complete' the management program prior to discharge from parole, as Section 3008(d) contemplates. Nor does CDCR otherwise allow a Registrant's participation in the management program to be terminated, as Section 3008(d) contemplates. Rather, CDCR and CDCR, as a matter of policy, retain all Registrants in a management program until their discharge date, regardless of whether they have completed the treatment curriculum, and regardless of the Registrant's individual treatment needs, supervision level, or risk of re-offense. (Pet. ¶ 34.)

Although not required at the pleading stage, Petitioners have also pleaded certain evidentiary facts. For example, Petitioners allege in the *In re Frederick Dwyer Dwyer* habeas corpus proceeding, the trial court heard testimony from a CDCR regional supervisor reporting it is "essentially the policy of the Department of Corrections that completion of the program is not possible before the discharge from parole program." (Pet. ¶ 39.)[4] The petition also provides information about how all five individual Petitioners have been "retained in the management program indefinitely rather than evaluated for termination from the program, as Section 3008(d) contemplates." (Pet. ¶¶ 43-55.) These ultimate facts and factual allegations are sufficient to state a claim.

Relatedly, Respondent contends Petitioners have not alleged a ministerial duty owed by Respondent and enforceable by mandate. (Memo 14:8-16:12.) Although the argument is not well developed and is unclear, Respondent appears to contend section 3573 of title 15 of the California Code of Regulations (Section 3573) "does not amend, impair, or limit the scope of section 3008(d)(2) as nothing in Penal Code section 3008(d)(2) prohibits nor mandates that the Secretary exercise his discretion in any particular manner." (Memo 15:26-28.) Respondent notes the "regulation does not exempt *any* sex offender parolees from requesting or being granted early discharge from their statutory parole period." (Memo 15:28-16:2.) That a sex offender parolee may request early discharge does not appear to inform on the validity of the regulation.

The petition is partly based on an alleged conflict between Section 3573 and Penal Code section 3008, subdivision (d) (see Pet. ¶ 32), but the petition also alleges "CDCR, ***as a matter of policy***, retain[s] all Registrants in a management program until their discharge date, regardless of whether they have completed the treatment curriculum, and regardless of the Registrant's individual treatment needs, supervision level, or risk of re-offense." (Pet. ¶ 34 [emphasis added].) Further, as to Section 3573, the petition alleges "no provision of Section 3573 or any other regulation allows for the 'completion' of the management program. Nor does Section 3573 or any other regulation allow for termination of a Registrant's participation in the management program prior to discharge from parole, as Section 3008(d) contemplates." (Pet.

¶ 32.)

Respondent does not demonstrate Petitioner's allegations concerning Section 3573 are incorrect. Even if Section 3573 does not expressly prevent parolees from "requesting or being granted early discharge from their statutory parole period," as argued by Respondent, the petition sufficiently alleges the regulation is interpreted and implemented by CDCR in a manner that conflicts with Penal Code section 3008, subdivision (d).

"[M]andamus may issue to compel an official both to exercise his or her discretion (if he or she is required by law to do so) and to exercise it under a proper interpretation of the applicable law." (*California Assn. for Health Servs. at Home v. State Dept. of Health Care Servs.* (2012) 204 Cal.App.4th 676, 683; see also Gov. Code, § 11342.2. ["Whenever by the express or implied terms of any statute a state agency has authority to adopt regulations to implement, interpret, make specific or otherwise carry out the provisions of the statute, no regulation adopted is valid or effective unless consistent and not in conflict with the statute and reasonably necessary to effectuate the purpose of the statute."])

Because Petitioners have alleged CDCR's regulations, policies, and practices conflict with the controlling statutes, including Penal Code section 3008, subdivision (d), Petitioners have alleged a cause of action for traditional mandate.

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Petitioners Sufficiently Allege They Lack a Plain, Speedy, and Adequate Remedy in the Ordinary Course of Law

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Respondent contends Petitioners have an adequate legal remedy through a petition for writ of habeas corpus "to challenge their parole condition that requires them to participate in the SOMP." (Memo 17:6-7.)

The argument is unpersuasive for at least three reasons. First, it misapprehends the nature of Petitioners' writ claim as a challenge to individual parole conditions, rather than a challenge to Respondent's state-wide regulations, policies, and practices. Second, it ignores applicable case law, which held, in similar circumstances, that "[a] writ of habeas corpus . . . is not available 'in the ordinary course of law'" because it is "an extraordinary remedy." (*Villery v. Department of Corrections & Rehabilitation* (2016) 246 Cal. App. 4th 407, 415-16.) Finally, Respondent does not demonstrate, for purposes of a demurrer, that numerous habeas corpus petitions challenging CDCR's regulations, policies, and practice would be more "speedy" or "adequate" than a single writ petition raising the same claim.

Respondent does not addressed *Villery v. Department of Corrections & Rehabilitation* or Petitioners' other contentions regarding the inadequacy of habeas corpus petitions for the claim made in the petition. (*Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc., supra,* 111 Cal.App.4th at 1345, fn. 16 [failure to address point is "equivalent to a concession"].)

Petitioners have sufficiently alleged they lack a plain, speedy, and adequate remedy in the ordinary course of law.

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Demurrer for Uncertainty

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Respondent contends "use of the fictitious names John Doe # 1 and John Doe # 2 render the petition uncertain and ambiguous providing additional grounds for the Court to sustain the demurrer." (Memo 13:16-17.)

Demurrers for uncertainty are strictly construed. Discovery can be used for clarification. A demurrer for uncertainty is appropriate only where a defendant cannot reasonably determine what issues or claims are stated. (*Khoury v. Maly's of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) "[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend." (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2.)

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Here, even with the use of fictitious names for Petitioner Does 1 and 2, Respondent can reasonably determine the nature of Petitioners' claims. Notably, Petitioners' claims are also based on allegations concerning the *In re Frederick Dwyer* litigation and the other, named individual Petitioners. Further, as discussed earlier, the petition does not seek writ relief as to any individual's parole conditions. Instead, Petitioners challenge Respondent's statewide regulations, policies, and practices. In these circumstances, the use of fictitious names for two of the Petitioners does not render the pleading uncertain as asserted by Respondent.

Respondent has not demonstrated his demurrer for uncertainty should be sustained.

New Reply Arguments

In reply, Respondent admittedly challenges the petition based on entirely new arguments not discussed in his demurrer. Specifically, Respondent contends: (1) Petitioners have not alleged sufficient facts to support a facial challenge to Section 3573 (Reply 3:5-6); (2) the petition allegations are insufficient because they are made on "information and belief" and "Petitioners do not rely on their own circumstances or experience in relation to th[e] alleged [unlawful] policy and practice" (Reply 6:9-11); (3) testimony from the *In re Frederick Dwyer* litigation is insufficient to state a cause of action for mandate (Reply 7:12-14); and (4) Petitioners have not alleged standing to make "as applied" challenges to CDCR's regulations, policies, and practices based on a "hypothetically similar petitioner." (Reply 7:14, fn. 3.)

"The salutary rule is that points raised in a reply brief for the first time will not be considered unless good cause is shown for the failure to present them before." (*Balboa Ins. Co. v. Aguirre* (1983) 149 Cal.App.3d 1002, 1010; see also *Regency Outdoor Advertising v. Carolina Lances, Inc.* (1995) 31 Cal.App.4th 1323, 1333.)

Respondent does not show good cause to raise new arguments in reply. The reply arguments are legal in nature and could have been raised in the demurrer. Respondent's counsel's meet and confer declaration states that on August 11, 2023 counsel for Respondent and Petitioner discussed "the Secretary's position that claims raised in the petition failed as a matter of law." (Heinisch Decl. ¶ 4.) Nonetheless, there is no explanation for failing to raise the Respondent's reply arguments in the demurrer. Petitioners have not had a full and fair opportunity to respond in writing to the arguments initially raised in Respondent's reply. Under the circumstances, the court declines to consider the new reply arguments summarized above.[5]

Second Cause of Action – Declaratory Relief

Respondent argues "Petitioners' claim for declaratory relief is wholly and entirely dependent on their claim for mandamus relief" and should be sustained. (Memo 17:10-11.) However, as argued by Petitioners, the second cause of action is based on Government Code section 11350, subdivision (a), in the Administrative Procedures Act and, therefore, is not derivative of the writ cause of action.[6] Respondent does not address the argument in reply and thereby concedes it for purposes of this demurrer. (*Sehulster Tunnels/Pre-Con, supra,* 111 Cal.App.4th at 1345, fn. 16.)

CONCLUSION

The demurrer is overruled.

IT IS SO ORDERED.

December 13, 2023

Hon. Mitchell Beckloff

Judge of the Superior Court

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[1] Specifically, Penal Code section 3008, subdivision (d)(2) provides: "(d) On or after July 1, 2012, the parole conditions of a person released on parole for an offense that requires registration pursuant to Sections 290 to 290.023, inclusive, shall include all of the following: . . . (2) Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court. Participation in this program applies to every person described without regard to when his or her crime or crimes were committed."

[2] In reply, Respondent does not specifically defend the arguments he made in his demurrer. Instead, Respondent makes entirely new arguments which is procedurally improper. In a footnote, Respondent states he "does not abandon any arguments raised in the demurrer. Respondent relies on the arguments as presented in the demurrer in addition to those presented in this reply." (Reply 3, fn. 1.) While Respondent may not have "abandoned" any legal arguments for purposes of this proceeding, he has not responded to many, if not all, of Petitioners' opposition arguments concerning the sufficiency of the pleading. (See *Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16 [failure to address point is "equivalent to a concession"].)

[3] The regulation states in part: "A claimant has the ability to submit a written grievance to the department containing one or more claims, subject to the requirements in section 3482, to dispute a policy, decision, action, condition, or omission by the department or departmental staff. . . ." (Cal. Code Regs., tit. 15, § 3482, subd. (a).)

[4] Respondent wholly ignores the *In re Frederick Dwyer* allegations in the demurrer. In reply, Respondent argues the *In re Frederick Dwyer* allegations could only be relevant to a claim of collateral estoppel. (Reply 6:27-7:3.) The court disagrees. Whether the *In re Frederick Dwyer* decision has any collateral estoppel effect, testimony from that action may constitute judicial admissions or otherwise lead to evidence in support of Petitioner's claim. As a result, the ultimate ruling of the San Mateo County Superior Court in *In re Frederick Dwyer* is not determinative here. (See Reply 7:4-14.)

[5] Alternatively, even if the court considers the new reply arguments, the court reaches the same result and overrules the demurrer for the reasons discussed above and in Petitioners' opposition. Given the liberal pleading standard and the allegations that Respondent's regulations, policies, and practices are unlawful, including based on testimony from a CDCR regional supervisor in the *In re Frederick Dwyer* litigation, the reply arguments do not persuade the court that the demurrer should be sustained. Of course, Respondent is not precluded from further developing its arguments for the trial on the writ petition.

[6] Government Code section 11350, subdivision (a) states in pertinent part: "Any interested person may obtain a judicial declaration as to the validity of any regulation or order of repeal by bringing an action for declaratory relief in the superior court in accordance with the Code of Civil Procedure. . . . The regulation or order of repeal may be declared to be invalid for a substantial failure to comply with this chapter. . . ."
